

		under the terms of the Protective Order, the parties have agreed that the document may be sealed, and the exhibit redacted pending a ruling on the motion to seal.” (Decl. of Sierra Chinn-Liu in Supp. of Def. Inari’s Mot to Seal Portions of Pltf.’s Mot. for Leave to File Amend. Compl., ¶ 3.) Defendant Inari argues that: [The document] has been designated by Inari as “Confidential” or “Highly Confidential – Attorneys’ Eyes Only” under the parties’ Stipulated Protective Order, which has been entered by the Court. The parties have agreed that material so designated may be filed under seal (e.g., para. 18). (Mem. P.s &A.s at p. 1:11-14.) However, an agreement that a document may be filed conditionally under seal pending a court ruling does not mean the court must or should ultimately grant the motion to seal. In addition, an agreement between the parties “alone is insufficient to constitute an overriding interest to justify sealing.” (<i>McNair v. National Collegiate Athletic Assn.</i> (2015) 234 Cal.App.4th 25, 35–36.) The Rules of Court are clear that “[t]he court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court, rule 2.551(a).) Instead, the court must consider the interests of the public and the interests served by having an open legal system. Thus, the court must require a specific showing that serious injury will occur absent a sealing order. (See <i>McNair v. National Collegiate Athletic Assn.</i>, <i>supra</i>, 234 Cal.App.4th at p. 35.) Here, Defendant Inari has made no such showing. The court will deny the motion to seal. Plaintiff shall give notice of these rulings.
8	Moyer vs. Norm Reeves, Inc. 30-2020-01128340	<u>Motion to Enforce Settlement</u> Plaintiff Richard Moyer Jr.’s Motion to Enforce Settlement Pursuant to CCP § 664.6 is DENIED. <u>Pending Motion</u> Plaintiff Richard Moyer Jr. moves for an order enforcing the settlement between Plaintiff and Defendants Irvine Auto Retail, Inc. dba Norm Reeves Honda Superstore Irvine and Chad Lemieux. <u>Standard for Enforcement of Settlement Agreement</u>

Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).)

As the Court of Appeal has explained:

The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement."

(*Greisman v. FCA US, LLC* (2024) 103 Cal.App.5th 1310, 1321, quoting *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809; see also *Eagle Fire and Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448, 457 ["section 664.6 provides an expedited procedure for enforcing the parties' settlement agreement"]; *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 ["Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement."].)

Pursuant to Section 664.6, "even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, *if the parties have requested this specific retention of jurisdiction.*" (*Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 439, italics original.)

However, "[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to the material terms of the settlement." (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732.)

Thus, before granting a motion to enforce a judgment, the court must determine "whether the parties entered into a binding settlement agreement of all or part of a case." (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 911.)

In making this determination, "a trial court should consider whether (1) the material terms of the settlement were explicitly defined, (2) the supervising judicial officer questioned the parties regarding their understanding of those terms, and (3) the parties expressly acknowledged their understanding of and agreement to be bound by those terms." (*Ibid.*)

	Here, the parties did not orally stipulate to the settlement before the court. Thus, the court did not have the opportunity to question the parties about the terms of the settlement, their understanding of the terms, or their agreement to be bound by the terms. In addition, Plaintiff has not attached to the motion the alleged settlement agreement. Thus, the court is unable to determine whether the material terms of the settlement were explicitly defined or even if, as one of the terms, the parties agreed to the retention of jurisdiction pursuant to Section 664.6. Instead, Plaintiff submits the declaration of one of his Counsel, which attaches an opposition to an order to show cause that contains another declaration of that same Plaintiff's Counsel, to which a variety of emails between Plaintiff's counsel and Defendants' counsel are attached. (See Decl. of William Welden, ¶ 2, Exh. 1.) Leaving aside the evidentiary issues of such a declaration within an opposition within a declaration, the declaration(s) do not show the existence of a settlement agreement with the term that Plaintiff now seeks to enforce. If anything, the declaration shows that the parties never came to a meeting of the minds as to the term in question. For example, the declaration shows that on March 17, 2025, Sara Schneider, former counsel for Defendants, sent an electronic mail to William Welden, counsel for Plaintiff, stating that "[w]e write to inform you that your response to our \$[redacted] settlement offer made last summer is due per the arbitrator by this Wednesday, March 20." (<i>Ibid.</i>) The evidence also shows that, on May 16, 2025, Schneider wrote to Welden stating, "We need an immediate response to our offer to resolve this case because the deadline to cancel the arbitration without penalty is quickly approaching on June 16. [¶] If we are not able to resolve before that deadline, we will not entertain any further settlement discussions." (<i>Ibid.</i>) The declaration includes a follow up electronic mail from Schneider on May 21, 2025, stating, "I am following up again – is there interest in making a counteroffer? We have very limited time before the arbitration fees become non-refundable, in which case my client will not consider settlement." (<i>Ibid.</i>) There is no evidence that Plaintiff or his Counsel responded to Schneider until July 11, 2025, almost two months later. On that date, Gary Carlin, another lawyer representing Plaintiff, sent an electronic mail to Schneider stating, "Please be advised that I am handling the case for Richard Moyer. I have your proposed settlement agreement wherein you confirm that we had settled the case for [redacted.] However, you are insisting on deducting [redacted] for fees
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		that you [paid [sic] to Jams that you have npt [sic] recpoevered [sic]. That deduction of [redacted] is not acceptable." (<i>Ibid.</i>) Thus, there is no evidence that the parties ever came to an agreement as to whether the arbitration fees would be deducted from the settlement payment. Nor is there any evidence that the parties agreed in writing that the court would retain jurisdiction pursuant to Section 664.6. The court will deny the motion. The court clerk shall give notice of this ruling.
9	Schifeler vs. Neogenomics Laboratories 30-2025-01483801	<u>Motion to Transfer Venue</u> Defendants Monterey Pathologists Medical Group's and Jeffrey Thomas Keating, M.D.'s Motion to Transfer Venue to Monterey County Superior Court is taken OFF CALENDAR, pursuant to the court's orders issued May 5, 2026 (ROA #60), and Defendant Monterey Pathologists Medical Group and Jeffrey Thomas Keating, M.D.'s Notice of Taking Motion to Transfer Venue to Monterey County Superior Court Off Calendar filed April 30, 2026 (ROA #56).
10	Alliance Funding Group vs. Good Tree Entertainment LLC 30-2022-01293136	<u>Motion to Amend Judgment</u> Plaintiff Alliance Funding Group's Motion to Correct Typographical Erro and Amend Judgment Nunc Pro Tunc is GRANTED. The court will issue the proposed Judgment on Stipulation submitted by Plaintiff Alliance Funding Group. (See ROA #83.) <u>Pending Motion</u> Plaintiff Alliance Funding Group moves to correct a typographical error and amend the Judgment entered on June 2, 2025 <i>nunc pro tunc</i>. <u>Standard to Amend Judgment</u> "The general rule is that once a judgment has been entered, the trial court loses its unrestricted power to change that judgment." (<i>Craven v. Crout</i> (1985) 163 Cal.App.3d 779, 782.) However, there is an exception whereby the court may "correct clerical errors in a judgment which has been entered." (<i>Ibid.</i>) Specifically, Civil Procedure Code section 473(d) provides: